

HOUSE No. 3348

The Commonwealth of Massachusetts

PRESENTED BY:

Russell E. Holmes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the executive office of structural racism.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>1/15/2025</i>
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>10/21/2025</i>

HOUSE No. 3348

By Representative Holmes of Boston, a petition (accompanied by bill, House, No. 3348) of Russell E. Holmes relative to establishing the executive office of structural racism. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3047 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the executive office of structural racism.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 6A of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting after the word “security”, in line 5, the second
3 time it appears, the following words:- , structural racism.

4 SECTION 2. Said chapter 6A, as so appearing, is hereby further amended by adding the
5 following section:-

6 Section 105. (a) There shall be an executive office of structural racism.

7 (b) The executive office of structural racism shall be under the supervision and control of
8 a secretary of structural racism, in this section called the secretary. The secretary shall be

9 appointed by and serve at the pleasure of the governor, shall receive such salary as the governor
10 determines and shall devote full-time to the duties of the office.

11 (c) The secretary shall have all powers necessary or convenient to carry out the duties of
12 the office including, but not limited to, the following duties and powers:

13 (1) Establish bureaus and other functional units within the office and hire employees;

14 (2) Coordinate, analyze, develop, evaluate, recommend and assist in implementing
15 strategies and policies for advancing racial equity across state agencies and the office of the
16 governor;

17 (3) Identify all known laws and rules, including but not limited to: general laws, special
18 laws, ordinances, regulations, policies, standards and licensing that have perpetuated the
19 structural inequality in the areas of economics, employment, housing, health and education,
20 which have had a devastating impact on communities of color in Massachusetts. The office shall
21 also investigate whether such rules and laws were crafted with a discriminatory intent to hinder
22 the progress of federally protected groups;

23 (4) Review the various laws, ordinances policies, rules or regulations that are expected to
24 be adopted by the commonwealth and create published findings on whether they will eventually
25 perpetuate the structural disadvantages often faced by communities of color before any steps are
26 taken in their implementation in the commonwealth. The office shall also monitor ongoing
27 policy trends of facially neutral laws that are gravel impacting minority communities;

(5) Utilize the findings of recent studies that highlight racial disparities to make recommendations that would legitimately curtail the discriminatory treatment communities of color should have long been protected against;

(6) Develop yearly findings on the disproportionate impact that incarceration is having on low income residents of color in Massachusetts and describe its negative effects, not just on the lives of marginalized communities, but on the commonwealth as a whole;

(7) Identify the behavioral health conditions that develop due to the structural disadvantages, which impact people of color in the commonwealth, in addition to this strategize ways to make these communities more aware of the distinct behavioral health conditions that often come from their experience in the communities; and

(8) Study and develop published findings on how structural racism has exacerbated disproportionate minority contact with the criminal law system in Massachusetts.

(c) The office shall be provided access to any record of a state agency. The office shall not be required to obtain the approval of any state agency in connection with the collection or analysis of any such information, nor shall the office be required, prior to publication, to obtain the approval of any officer or employee of any executive or state agency with respect to the substance of any findings or reports, which the office has prepared under this section.

(d) The office may adopt and amend rules and regulations for the administration of its duties and powers to effectuate this section.